

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #10	CCRB Case #: 201802896	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 04/13/2018 7:03 PM	Location of Incident: 221st Street and 116th Avenue	18 Mo. SOL 10/13/2019	Precinct: 105		
Date/Time CV Reported Fri, 04/13/2018 8:07 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 04/13/2018 8:07 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Salvatore Ascione	13249	955730	105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Donmartin Atienza	24584	952429	105 PCT
2. SGT Christopher Noll	00615	948110	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Salvatore Ascione	Abuse: Police Officer Salvatore Ascione stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Salvatore Ascione	Discourtesy: Police Officer Salvatore Ascione acted discourteously toward § 87(2)(b)	B . Unsubstantiated

Case Summary

On April 13, 2018, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System.

At approximately 7:03 p.m. on April 13, 2018, § 87(2)(b) was driving near the intersection of 221st Street and 116th Avenue in Queens. He was by himself at the time. § 87(2)(b) was pulled over at the intersection by PO Salvatore Ascione of the 105th Precinct (**Allegation A: Abuse of Authority – Vehicle stop**, § 87(2)(g)). PO Ascione approached § 87(2)(b)'s vehicle, accompanied by two other officers, Sgt. Christopher Noll and PO Donmartin Atienza. § 87(2)(b) provided PO Ascione with his driver's license as well as three police union cards. When PO Ascione questioned § 87(2)(b) about who had given him the cards, § 87(2)(b) became flustered and temporarily forgot who had given them to him. PO Ascione confiscated § 87(2)(b)'s union cards (§ 87(2)(b), § 87(2)(g)). He then allegedly threw § 87(2)(b)'s license back at him (**Allegation B: Discourtesy – Action**, § 87(2)(g)). PO Ascione released § 87(2)(b) with a warning and admonishment. No summonses were issued.

Body-worn camera footage was obtained for this incident from PO Ascione and PO Atienza. It was attached in IAs #14 and #23, and summarized in IA #15 (See Board Review #01-13: Video Footage and Summary). No other video footage was found for this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Salvatore Ascione stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) was interviewed at § 87(2)(b) in Queens on May 15, 2018 (See Board Review #04: § 87(2)(b)'s Statement). He stated that the vehicle that he was driving had tinted side windows. He was not certain of the specific light transmittance percentage of the window, but believed that it was within the legal limit in New York State. § 87(2)(b) denied that he committed any moving violations prior to his stop. He pulled over at the intersection in order to look up directions to his destination. Moments after he did so, a group of plainclothes officers pulled up behind him in an unmarked vehicle. PO Ascione approached § 87(2)(b) at the driver's window. § 87(2)(b) rolled down all four of his vehicle's side windows as the officers approached. PO Ascione told § 87(2)(b) that he was being stopped because his windows were improperly tinted. He did not cite any other justification for the stop. § 87(2)(b) was ultimately released with a warning.

PO Ascione and PO Atienza were interviewed at the CCRB on June 1, 2018 (See Board Review #05-06: MOS Statements). Both officers stated that they observed § 87(2)(b)'s vehicle drive through the intersection of Springfield Boulevard and 116th Avenue. As it passed, they noticed that § 87(2)(b)'s vehicle's side windows were darkly tinted. Both officers stated that the windows were tinted in excess of the legal limit. They determined this based on their training and experience. When asked what training they had received in regards to tinted windows, PO Ascione stated that he was taught by his training sergeant when he was first assigned to patrol. PO Atienza stated that he received training in identifying excessively tinted windows during

officer training at the Police Academy. Both officers also stated that § 87(2)(b) was driving at a high rate of speed. They did not know his exact speed, but they noted that their unmarked vehicle was traveling at the local 25 miles per hour speed limit, and that § 87(2)(b) was going faster than they were. PO Ascione, the driver, decided to pull § 87(2)(b) over for speeding and for excessively tinted windows. No other factors contributed to his decision. He initiated the stop by turning on his emergency lights. Both he and PO Atienza denied that there was any discussion among the officers about § 87(2)(b)'s observed infractions or what potential course of action they would take against § 87(2)(b). PO Ascione and PO Atienza both stated that once they approached § 87(2)(b)'s vehicle, PO Ascione informed § 87(2)(b) that he had been pulled over due to his tinted windows. PO Ascione ultimately decided to use his discretion and release § 87(2)(b) with a warning rather than summonses.

PO Ascione and PO Atienza both recorded § 87(2)(b)'s stop on their body-worn cameras. PO Ascione's video shows § 87(2)(b) and his vehicle. As § 87(2)(b) had noted in his sworn statement, the side windows were all rolled down at the time that PO Ascione approached. It cannot be seen if the windows are tinted. At 0:35 on PO Ascione's recording, § 87(2)(b) asks him, "What's the problem?" PO Ascione replies, "Your window tints."



201802896 - PO Ascione BWC.AVI

PO Atienza's video covers the same period as PO Ascione's. The camera is pointed upwards, so neither § 87(2)(b) nor his vehicle are seen. PO Atienza is positioned on the opposite side of the vehicle from PO Ascione. § 87(2)(b) can be heard speaking, but his words are not heard clearly. At 0:36 on PO Atienza's recording, PO Ascione is heard stating, "Your window tints."



201802896 - PO Atienza BWC.AVI

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]

Allegation (B) Discourtesy: Police Officer Salvatore Ascione acted discourteously toward

§ 87(2)(b)

§ 87(2)(b) provided his driver's license to PO Ascione during the vehicle stop. At the conclusion of the incident, PO Ascione returned the license to § 87(2)(b) by throwing it into the

window of § 87(2)(b)'s vehicle. The license landed in § 87(2)(b)'s lap. § 87(2)(b) noted that while PO Ascione did not forcibly throw the license or strike him with it, he felt that PO Ascione did so in a deliberately disrespectful manner.

PO Ascione and PO Atienza both confirmed that § 87(2)(b) provided his license to PO Ascione during the stop. PO Ascione stated that he returned the license to § 87(2)(b) by handing it directly to him. He denied throwing the license. PO Atienza stated that he was standing on the passenger's side of the vehicle at the time of this interaction. He was not able to see what occurred between § 87(2)(b) and PO Ascione on the driver's side of the vehicle. He did not see if PO Ascione threw § 87(2)(b)'s license or any other objects into the vehicle.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (See Board Review #07: Civilian CCRB History).
- PO Ascione has been a member of service for four years and has been a subject in four CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A Notice of Claim request was submitted to the NYC Office of the Comptroller on June 1, 2018. It will be included in the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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